

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/21/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0008896

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: ITRIA VENTURES LLC, A
DELAWARE LIMITED LIABILITY
COMPANY

vs.

DEFENDANT: GARLO LLC, A NEW
MEXICO LIMITED LIABILITY COMPANY,
ET AL

NATURE OF PROCEEDINGS: MOTION – SET ASIDE/VACATE

RULING

The motion to set aside default, purportedly brought by “Defendant In Pro Per” Garlo LLC, is hereby **STRICKEN** as it was not drawn or filed in conformity of the laws of this state. (Code Civ. Proc., § 436 subd. (b).) In California, a corporation must be represented by a licensed attorney in legal proceedings. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) Here, the motion is purportedly brought by “Garrett Wood, Authorized Representative of Garlo LLC.” According to the State Bar, there is no individual by that name licensed as an attorney in the State of California.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/21/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009543

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: BUCKELEW PROGRAMS	
vs.	
DEFENDANT: INCHA SMITH	

NATURE OF PROCEEDINGS: MOTION – SET ASIDE/VACATE

RULING

On June 30, 2026 the Defendant, through his Guardian ad Litem (“GAL”), filed a notice of appeal of the judgment in this case. Under Code of Civil Procedure section 916, the trial court is divested of subject matter jurisdiction over any matter “embraced in or affected by” the appeal during the pendency of that appeal. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 196-197.) Thus, the Court lacks jurisdiction to hear the motion to vacate judgment and it is ordered **off-calendar**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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